

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN UGANDA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Uganda, grounded in the ESIA-certificate system under the National Environment Act, land-tenure and compensation rights, the courts and the Human Rights Commission, and documented community experience

This guide uses the Ugandan legal terms you will actually encounter (the ESIA and the certificate of approval, NEMA and its Executive Director, the project brief and scoping, the public hearing, customary and mailo land, the Uganda Human Rights Commission, and so on), each explained in plain language where it first comes up. Uganda's laws and, especially, its civic conditions change; the core mechanics below apply, but always check the current position.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Local terms are given with a short English gloss.

A note on money. Budgets in this guide are in Ugandan shillings (UGX). Every figure is indicative — Ugandan community efforts are typically very low-cost (volunteer-run, using local structures, free complaints, and public participation); larger sums apply only where independent studies or lawyers are engaged. Treat the ranges as a menu, not a bill.

A note on risk — read this first. Uganda has a restricted and, in recent years, sharply tightening civic space, especially around the oil and pipeline projects. The government has **arrested environmental and land-rights defenders** — dozens around the oil projects — suspended NGOs, and used harassment, detention, and worse against those who protest. This guide is written to be realistic about that: it emphasises the **lawful, within-system** levers that carry the least risk, urges you to work through permitted channels and to keep everything documented and non-confrontational, and repeatedly flags safety. Please read Section 13 carefully before acting, and get advice from a lawyer or a human-rights organisation where you can.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action can change project outcomes in Uganda — but the levers are specific, and they work best when used lawfully and within the system, so knowing which ones work is half the battle. Ugandan law requires most significant

projects to obtain an **ESIA certificate** — an Environmental and Social Impact Assessment certificate of approval issued by **NEMA** (the National Environment Management Authority) under the **National Environment Act, 2019** — before they can proceed. The law provides for **public participation** at every stage of the assessment, and for a **public hearing** where NEMA decides one is needed. Uganda's **Constitution and Land Act** recognise several forms of land tenure — including **customary and mailo** land — and require **prompt, fair, and adequate compensation** before land is compulsorily acquired, a real community protection. And the law provides court routes and a constitutional watchdog in the **Uganda Human Rights Commission (UHRC)**.

That is a real, if narrow, toolkit. The honest counterweight — and it is a heavy one — is that Uganda prioritises investment and state-led development, above all the **oil and pipeline projects** (Tilenga, Kingfisher, and the East African Crude Oil Pipeline, EACOP); the ESIA certificate is issued by NEMA's **Executive Director**, and the assessment is prepared by the developer's own accredited expert; compensation for displaced communities has been widely documented as **delayed, inadequate, or without replacement land**; the courts have at times been used against affected people rather than for them; and — most seriously — civic space is restricted and tightening, with the government **arresting and harassing environmental and land-rights defenders** and suspending NGOs, especially around the oil projects. Opposition here is therefore very different from opposition in an open democracy: the safest and most effective work is **technical, procedural, and lawful** — insisting the ESIA and land-and-compensation processes follow the law, using the assessment documents, raising specific defects through the proper channels, and working through local structures and the courts — rather than confrontation that can be treated as anti-government or a threat. Communities across Uganda have, within these limits, pressed for better compensation, safer projects, and proper assessment — and civil society has taken the oil ESIA to court.

What "winning" realistically means. Rarely a public government reversal of a promoted project. More often: an ESIA sent back for defects; consultation and compensation taken seriously where they were skipped; compensation improved; conditions and mitigation tightened; a certificate delayed; a project quietly adjusted after well-documented, lawful pressure; or a court examining an unlawful decision. Each has happened, or been attempted, in Uganda. The realistic goal is to make the project comply with its own legal requirements — above all the ESIA and the compensation rules — to raise its cost and delay, and to use the participation, land-rights, court, and UHRC levers Uganda provides — while keeping your people safe above all.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, whether it needs a full ESIA, whose land and tenure it is, who decides, and the deadlines.
2. **Documentation** — build an evidence record strong enough for the public hearing, a UHRC complaint, and a court case.
3. **Local support** — build lawful community support through local structures, because a united, law-abiding community carries weight.
4. **Legal challenges** — use public participation, the ESIA process, land and compensation rights, the courts, and the UHRC.
5. **Media & communication** — raise the issue through permitted channels in ways that inform without inviting a crackdown.

No single step wins alone. The combination — lawful local support plus participation, the ESIA and land levers, and the courts — is what works within Uganda's constraints.

A realistic picture of the odds. Be honest with your community from the start about what is likely — and, in Uganda, about what is safe. Projects the state backs, above all oil, and that reach a decision are almost always approved, and an outright public reversal is rare. The realistic, achievable wins are incremental and lawful: an ESIA improved or sent back; **land consultation taken seriously** where it was skipped; **compensation raised** to the prompt, fair, and adequate standard the Constitution requires, with **replacement land** where the law demands it; conditions and mitigation tightened; and a project delayed or adjusted after well-documented, lawful pressure — or, where a decision is unlawful, examined by the courts. None of these is a dramatic public veto, but each has protected, or has been fought for by, real Ugandan communities facing displacement. Just as important: a "win" in Uganda also means having acted lawfully and kept your people safe. A campaign that measures itself only against stopping the project outright will feel like failure even when it has won better compensation and forced real consultation; one that banks each lawful improvement, and keeps everyone safe, has genuinely succeeded. Plan for patience, lawfulness, and safety — not a dramatic confrontation.

Your lawful rights here are real. Within its constraints, Ugandan law gives communities rights you can invoke: the **Constitution (Article 26)** and the **Land Act** require any compulsory acquisition to be lawful and to carry **prompt, fair, and adequate compensation**, and protect the rights of owners and **lawful and bona fide occupants** across the customary, mailo, freehold, and leasehold tenures; the **National Environment Act** requires **public participation** and

possible **hearings** in the ESIA; the **Access to Information Act** lets you request documents; and the **Uganda Human Rights Commission** and the **courts** exist to check rights and administrative violations. That framing matters practically: when a developer takes land without lawful process, offers late or inadequate compensation, or disregards lawful occupants, it is not merely being unfair — it is breaching duties you can lawfully raise. Approach the process as a community asserting lawful rights — calmly, factually, and through your local structures — rather than as a supplicant, while taking the safety cautions in Section 13 seriously.

Critical Caveat: A Constrained System

Uganda's system prioritises investment and state-led development, above all oil; issues the ESIA certificate through NEMA's Executive Director; has documented compensation failures; and restricts civil society — and has arrested land and environmental defenders. Assessing that honestly is essential, because it changes which tools are safe and useful. The strongest and safest routes are usually a rigorous, **technical** engagement with **public participation** and the **ESIA**, insistence on **prompt, fair, and adequate compensation** and lawful land acquisition, a complaint to the **UHRC**, and — where a decision is unlawful — the **courts**, all combined with lawful, well-protected community pressure. Section 13 deals honestly and at length with these constraints and with staying safe.

How to use this guide

Read Sections 1–3 and, crucially, Section 13 before acting. Then work Section 4 (Target Identification) — it produces the facts every other step needs, above all whether a full ESIA applies, whose land and tenure it is, who decides, and the deadlines. Sections 5–8 run in parallel, always within lawful limits. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 is essential reading on constraints and safety.

HOW THE SYSTEM WORKS

Before you can act on a project you have to know who decides it, how, and the words the system uses. Uganda is a unitary state with a strong central government and a system of **decentralised local government** (districts, sub-counties) and, on the ground, several distinct **land-tenure** systems. Environmental assessment is governed chiefly by the **National Environment Act, 2019 (NEA)** and the **National Environment (Environmental and Social Impact Assessment) Regulations, 2020**. Power over a project is shared between the **central government** (NEMA, the sector ministries, and the sector regulators), **local government**, and — decisively for most conflicts — the **landowners and occupants** under Uganda's tenure system.

The bodies that decide — and what each one controls

NEMA (National Environment Management Authority). The environmental regulator: it administers the ESIA process — **screening**, approval of the **scoping report and terms of reference**, review of the **ESIA Statement**, the **public participation and any public hearing** — and its **Executive Director** makes the decision to grant, refuse, suspend, or cancel the **ESIA certificate of approval**. NEMA registers and accredits the environmental practitioners who prepare the reports. This is usually your central technical arena.

The lead agencies and sector regulators. NEMA consults **lead agencies** (the relevant sector bodies) during review, and sector regulators grant the underlying licence — for oil and gas, the **Petroleum Authority of Uganda (PAU)** and the ministry; for other sectors, their own regulators. A project typically needs both an ESIA certificate and a sector licence.

Local government (district and lower). Districts and sub-counties handle physical planning, some permits, and local politics, and have **District Environment Officers** and **Area Land Committees**; the district is a political actor and a channel for concerns.

Landowners and occupants (the tenure system). Distinctively, Uganda recognises four tenure systems under the **Constitution (1995)** and the **Land Act (1998)**: **customary** (much of the country, often unregistered but legally protected), **mailo** (a historical tenure, chiefly in Buganda, where land and occupancy can be separately held), **freehold**, and **leasehold**. Many rural residents are **lawful or bona fide occupants** with real, protected rights even where they do not hold the title. Compulsory acquisition requires **prompt, fair, and adequate compensation** under the Constitution. This tenure-and-compensation position is often the heart of the fight — and knowing your tenure and occupancy status is essential.

Which one is "yours"? Ask: does the project need an **ESIA certificate**, and a **full ESIA** (Schedule 5) or only a **project brief** (Schedule 4)? Which **NEMA** process and which **sector regulator** (e.g. PAU for oil) apply? What is the **land tenure**

and your occupancy status? Does it affect a **wetland, forest, national park, lake, or river** (sensitive areas that raise the level of assessment)? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

For a project that needs a full ESIA, the NEA path is roughly:

1. **Screening.** The project is checked against the Act's schedules — **Schedule 4** projects need only a **project brief**; **Schedule 5** projects (and those in the **sensitive areas** of Schedule 10) need a **full ESIA**. Screening decides the level.
2. **Scoping and terms of reference.** For a full ESIA, the developer's **accredited practitioner** prepares a **scoping report and terms of reference**, which **NEMA reviews and approves** (in consultation with lead agencies) before the study begins.
3. **The ESIA study and consultation.** The practitioner conducts the study, and the Regulations require **stakeholder and affected-community consultation** during it. This produces the **ESIA Statement**. Note the transparency weakness: the consultation is led by the developer's own expert.
4. **Review, public participation, and any hearing.** NEMA reviews the Statement in consultation with the **lead agencies, the general public, and persons likely to be affected**, and **may hold a public hearing** (at the developer's expense). **This is your main formal moment** to get objections on the record.
5. **Decision and the certificate.** The **Executive Director of NEMA** decides — the **ESIA certificate of approval**, based on the terms of reference, the lead-agency and public comments, any public-hearing report, and other factors. The legal review period is **60 days** from a complete submission (in practice longer); the whole process is meant to run within about **12 months**.
6. **Monitoring and the power to suspend.** NEMA monitors compliance and can **suspend or cancel** a certificate. Breaches are an enforcement — and complaint — opening.

Where **land** is involved, a parallel and vital process applies: lawful acquisition requires proper valuation and **prompt, fair, and adequate compensation**, and respect for the rights of owners and **lawful/bona fide occupants** — steps that have frequently been mishandled, and whose failure is a real legal defect.

The rulebook — the policies that decide the outcome

- **The NEA 2019 and the ESIA Regulations 2020.** Was a certificate and the right level of assessment required, the process followed, public participation and any hearing held, and the certificate lawfully issued? The core battleground.
- **The Constitution (Art. 26) and the Land Act 1998.** For land: was acquisition lawful, were owners and lawful/bona fide occupants respected, and was compensation prompt, fair, and adequate? A distinct, powerful, frequently-breached set of rules.
- **Sector law (petroleum and others).** The underlying licence and its own requirements — for oil, the Petroleum Acts and the PAU.
- **Wetland, forest, and wildlife law.** Projects touching wetlands, forest reserves, national parks, or lakeshores face additional protections and grounds.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Uganda has staked much of its development strategy on **oil** — the Tilenga and Kingfisher fields and the EACOP pipeline, led by TotalEnergies and CNOOC with the state company UNOC — alongside dams, roads, and agribusiness; the state and powerful foreign investors promote these hard; and land, once acquired, is valuable. None of this is unusual, but it explains the strong default toward approval — and why the community's best levers are the technical, procedural, and land-and-compensation ones, not any expectation that the process leans your way.

The overseers — who watches the decision-makers

- **The High Court** — hears **judicial review** of unlawful administrative decisions, constitutional petitions, and land cases; civil society has taken the oil ESIA's to the High Court. Ugandan courts function but, in the oil context, have at times been criticised as unfriendly to affected people.
- **The Uganda Human Rights Commission (UHRC)** — a constitutional body with **tribunal powers** to investigate human-rights violations and award remedies; a relatively accessible route.
- **The Inspectorate of Government (IGG)** — the ombudsman and anti-corruption body, which investigates maladministration and corruption.
- **The regional courts** — the **East African Court of Justice** has been used by coalitions to challenge cross-border projects like EACOP.

- **Parliament and the Auditor-General** — sector and public-money oversight.

Naming and using the right channel signals you are working lawfully within the system — which, in Uganda, is both the safest and often the most effective approach.

A quick map of the words you will actually hear

The vocabulary is half the barrier, so here is the shorthand in plain terms. The **National Environment Act, 2019 (NEA)** is the framework, and the **ESIA Regulations, 2020** set out the steps. An **ESIA certificate** — the certificate of approval — is the environmental permission a project needs to proceed. **NEMA** — the National Environment Management Authority — runs the assessment; whether a project needs only a **project brief** (a limited assessment, **Schedule 4**) or a **full ESIA** (**Schedule 5**, or the sensitive areas in **Schedule 10**) is decided at **screening**. A full ESIA runs **scoping and terms of reference** (which NEMA approves), then the **ESIA study** with stakeholder consultation (led, note, by the developer's own accredited **environmental practitioner**), producing the **ESIA Statement**; NEMA reviews it with the **lead agencies** and the public, may hold a **public hearing** at the developer's expense, and the **Executive Director** of NEMA then grants, refuses, or conditions the certificate. On land, Uganda's four tenures — **customary, mailo, freehold, leasehold** — matter, and many residents are **lawful or bona fide occupants** with protected rights; acquisition needs **prompt, fair, and adequate compensation** under **Article 26** of the Constitution. When you challenge a decision, the **UHRC** (Uganda Human Rights Commission) is a rights watchdog with tribunal powers, **judicial review** in the **High Court** is the route to examine an unlawful decision, and for cross-border projects the **East African Court of Justice** is an additional forum. Keep this list to hand — using the right term, through the right lawful channel, is both the safest and the most effective approach in Uganda.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Ugandan and comparable experience, not a controlled study, and they are lower and slower than in more open systems because the constraints are real. Use them to prioritise effort. The most important lesson for Uganda sits inside the table: the **lawful, technical, within-system** levers — a rigorous engagement with **public participation and the ESIA**, insistence on **prompt, fair, and adequate compensation** and lawful land acquisition, and a specific **UHRC or court** challenge — are both the safest and the most productive, while confrontation and anything that can be framed as anti-government (especially around oil) carries real risk. Above all, **weigh safety before any action**.

Individual Step Success Rates

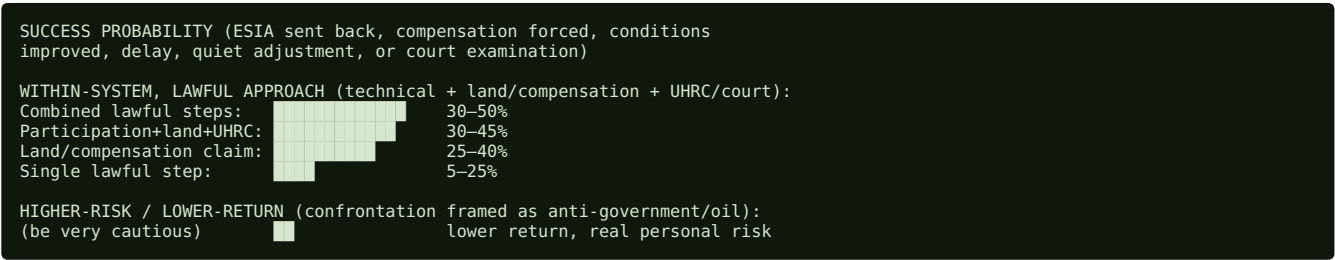
Approach	Success Rate	Timeline	Cost (UGX)	What "Success" Means
Documentation only	5-10%	2-4 months	0-1m	Project better understood; basis for other steps
Lawful local support only	15-25%	6-24 months	0-5m	Community united; authority takes notice
Public participation / hearing only	15-25%	1-4 months	0-2m	On record; can shape ESIA/conditions
Land/compensation claim	25-40%	6-24 months	0-8m	Consultation forced; compensation improved; delay
UHRC complaint only	15-25%	6-24 months	0-1m	Finding of rights violation; remedy; leverage
Judicial review (High Court) only	15-30%	12-48 months	2m-60m	Decision quashed or examined (courts mixed on oil)
Media (permitted) only	10-15%	2-6 months	0-2m	Issue known; authorities respond quietly
Docs + local support	25-35%	9-24 months	1m-15m	Pressure plus improved conditions
Participation + land + UHRC	30-45%	9-30 months	2m-20m	ESIA improved, consultation/compensation forced
Combined lawful steps	30-50%	12-48	5m-	ESIA sent back, compensation forced, conditions improved, delay, quiet

		months	60m	adjustment, or court examination
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Key insight: the combined lawful steps are several times more effective than any single one — and in Uganda the mix that works leans on **lawful local support + participation + land/compensation rights + UHRC + the courts**, not confrontation. The distinctive Ugandan features are the **land-tenure and compensation regime** (customary, mailo, and bona fide-occupant rights, with a prompt/fair/adequate compensation guarantee), the requirement for **public participation and possible hearings**, and functioning (if, on oil, sometimes unfriendly) courts and a UHRC with tribunal powers — set against a restricted and tightening civic space.

A note on cost and risk: public participation, a UHRC complaint, and local action are free or very low-cost. The main costs are any independent studies and a lawyer for court. But the real "cost" to weigh in Uganda is risk: confrontation and anything framed as anti-government or anti-oil can draw arrest, so the safest work is technical, lawful, and channelled through local structures and the courts.

Effectiveness Visualization



How to read this honestly. In Uganda, the strongest and safest legal facts are usually **land** ones — an acquisition without **prompt, fair, and adequate compensation**, or one that ignores the rights of owners and **lawful/bona fide occupants**, is a real, court-recognised defect — followed by a **defective ESIA or public-participation process**, raised through participation, the **UHRC**, and, where a decision is unlawful, the **courts**. Ugandan courts function but, in the oil context, have sometimes been criticised as unfriendly to affected people, so weigh the court route with advice. And anything that looks like organised anti-oil or anti-government opposition carries real risk of arrest. But even a modest "win" — an ESIA improved, compensation forced up, a project delayed or adjusted — is a real outcome achieved within the system.

Step Importance Ranking (When All Combined)

1. **Lawful local support** — a united, law-abiding community, working through local structures, is the foundation and carries real weight.
2. **Documentation** — the raw material for participation, a UHRC complaint, and any court case.
3. **Land/compensation rights and public participation** — the distinctive, frequently-breached community lever, and the formal moment to object.
4. **The UHRC and the courts** — the human-rights watchdog with tribunal powers, and the High Court that can examine unlawful decisions.
5. **Media (permitted)** — used carefully, through permitted outlets, to inform without inviting a crackdown.

Winning or partly-winning Ugandan efforts combined a united community, a careful evidence file, rigorous participation, a land/compensation or UHRC claim, and quiet work through lawful channels — never reckless, always within the law.

What Ugandan Experience Actually Shows

A few patterns recur. **Land and compensation are the heart of most conflicts** — because acquisition requires prompt, fair, and adequate compensation and must respect owners and lawful/bona fide occupants, a project that delays, underpays, or offers no replacement land has a genuine legal weakness, and this is where communities most often win improvements. **Public participation and the ESIA are real hooks** — the law requires consultation and possible hearings, so a skipped or token process is a defect, and civil society has challenged oilESIAs and flawed hearings in court. **The courts and UHRC can be used, but the oil context is hard** — judicial review and the UHRC's tribunal are real routes, though on oil the courts have sometimes been criticised as unfriendly and cases run slowly. And — the sober, essential lesson — **oil and land defence has been dangerous**: dozens of defenders have been arrested and NGOs suspended around the Tilenga, Kingfisher, and EACOP projects, so the effective path is lawful, technical, local, and safety-first. The through-line is that Uganda rewards communities that work rigorously and lawfully within the system — above all on land and compensation — and punishes those seen to work against it.

STEP 1: TARGET IDENTIFICATION

You cannot act on what you have not precisely identified. Answer five questions, and keep the answers in a careful, private working document — this becomes the effort's factual spine. (Given the sensitivities, keep sensitive material secure.)

Core Questions You Must Answer

Question 1: What Exactly Will Be Affected?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, farms, crops like coffee and food gardens, grazing, water, wetland, forest, lakeshore), and what the project would do to it — including any **land acquisition, displacement, and compensation**. Obtain the **ESIA Statement** (and the scoping report) from **NEMA** — much is public, and it is where the developer's expert, on the record, describes the impacts and admits the residual ones. List every admitted impact with its page reference. Pay special attention to **land and compensation, water and wetlands, crops and livelihoods**, and any **protected area**.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) whether the project needs a **full ESIA** (Schedule 5 / sensitive areas) or only a **project brief** (Schedule 4); (b) that **NEMA's Executive Director** issues the certificate; (c) which **sector regulator** (e.g. **PAU** for oil) grants the underlying licence; and (d) — decisively — the **land tenure and your occupancy status** (customary, mailo, freehold, leasehold; owner or lawful/bona fide occupant). Note the district authorities too. Because Uganda's live levers are participation, land/compensation rights, the UHRC, and the courts, know both the decision-makers and the rights that apply.

Question 3: What Specific Action Changes It?

A project can be improved, delayed, or adjusted at several points: an ESIA **sent back** or a certificate **refused, conditioned, or suspended**; **land consultation and compensation** taken seriously, or **compensation improved** to the prompt/fair/adequate standard (often the real crux); a **UHRC** finding and remedy; a **High Court** order examining an unlawful decision; or political defeat. Map the points and aim at the lawful ones the system actually responds to — above all the land/compensation and ESIA defects.

Question 4: When Is the Decision Final?

Diarise the deadlines: the **public-participation and any hearing** windows; the **60-day** (in practice longer) certificate decision; and the challenge clocks — **judicial review** must be sought **promptly** (strict time limits, generally a few months); a **UHRC** complaint and any **land-tribunal** or court claim have their own timing. Confirm the exact deadlines with a lawyer. Missing them can forfeit the route.

Question 5: Are There Documented Interests or Pressures?

Map, factually and very carefully: who profits, which companies (including foreign investors like **TotalEnergies** and **CNOOC**, and state entities like **UNOC**) are behind the project, whether land or licences changed hands before the proposal, and whether the project has a "strategic/national" designation. Use public sources — the company registry (URSB), the sector registries, and public notices. Build a dated, sourced record — but keep it **private and factual**, and never publish accusations; in Uganda that can be dangerous. Section 11 and Section 13 cover doing this safely.

Output of Step 1: a careful, private one-page fact sheet with the project's exact description, whether a full ESIA applies, that NEMA's ED decides, the land tenure and your occupancy status, the compensation picture, the specific lawful lever to pursue, every deadline, and the interests involved.

Worked example: which lever is actually open

Suppose an oil facility and access road are proposed near Lake Albert, on customary and mailo land with crops and homes, requiring displacement and threatening a wetland. Working the questions: **Q1** — the ESIA admits displacement, loss of coffee and food gardens, and wetland impacts; the compensation terms are in the resettlement plan. **Q2** — as an oil project it needs a **full ESIA** and a **NEMA certificate** (issued by the **Executive Director**), a **PAU** licence, and lawful land acquisition; the land is **customary/mailo**, and many residents are **lawful/bona fide occupants** with protected rights. **Q3** — the live, lawful levers are: rigorous **public participation and a hearing**; insistence on **prompt, fair, and adequate compensation** and replacement land (often the crux); a **UHRC** complaint; and, if the certificate or acquisition

is unlawful, the **courts**. **Q4** — you diarise the hearing window and the court clocks. **Q5** — the registries show the developers (TotalEnergies/CNOOC/UNOC). In an afternoon you know which levers are open — and that land/compensation rights, participation, the UHRC, and the courts, pursued lawfully, are your strongest and safest cards.

STEP 2: DOCUMENTATION

Documentation separates an effort the authorities, the UHRC, and the courts take seriously from one dismissed as complaint. It is also what your participation submissions, a UHRC complaint, and any court case all live or die on — and in Uganda, documenting **land, crops, and compensation, water and wetland impacts**, and the **adequacy of the consultation and the ESIA** is especially decisive. Build three layers. Keep sensitive material secure and share it only as needed; in Uganda, careless handling can create risk.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once ground is broken the "before" is gone. Start the day you learn of the project.

Land, crops, and livelihoods. Document the land as it is used now — homes, **coffee and food gardens, grazing, fishponds** — and the livelihoods it supports, because **land acquisition, displacement, and compensation** are the crux of most Ugandan conflicts, and the "before" picture is what a compensation claim rests on. Keep any **land titles, customary certificates, or occupancy evidence**, and record the community's long use. Photograph and list, per household, exactly what is on the land — the crops, trees, structures — because compensation turns on proving what was there.

Water and wetlands. Document the current state of rivers, streams, wetlands, and lakeshore — quality and use — using any available data and your own dated records and photographs.

Community and environment. Document habitats, any protected area, and the community and its use of shared resources.

How to hold it. Keep everything dated, sourced, geo-referenced, and backed up securely in more than one safe place. A well-organised baseline is more useful than a merely large one — and for land and compensation cases, precise per-household records of holdings, crops, and occupancy are the decisive material.

A note on doing your own measurements — carefully. You do not always need a lab. Dated, geolocated photographs of your gardens, a wetland, or a water point *before* the project are evidence, and simple, consistent records — a monthly photo from the same spot, a note of a stream's colour and flow, a log of the harvest — build a baseline no consultant's snapshot can match. Land, crops, and water are decisive in most Ugandan conflicts, so this ordinary record-keeping pays off, and for **compensation** claims especially, a precise, dated **per-household inventory** of exactly what is on the land — every coffee bush, banana stand, fruit tree, structure, and grave — is the single most valuable evidence you can have, because compensation disputes turn on proving what was there and what it was worth. Two cautions specific to Uganda: keep this **lawful and low-profile** — routine record-keeping of your own land is unremarkable and legitimate, but anything that looks like an organised anti-oil monitoring campaign can be dangerous — and **secure your records**, keeping copies of your titles or occupancy evidence, the inventory, and the valuation papers in more than one safe place. Capture the ordinary "before" now, quietly and carefully, because once ground is broken it is gone, and its absence is the most common reason harm and loss cannot later be proved or fairly compensated.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the developer's **ESIA Statement** — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the ESIA itself concedes, with page references. Unarguable.
2. **Land, water, and compensation** — scrutinise the treatment of land acquisition, displacement, wetland and water impacts, and the **compensation and resettlement** plan, because these are the decisive issues and the ones most often mishandled (delays, no replacement land, inadequate value).
3. **Underestimated or omitted impacts** — downplayed effects and **cumulative impacts** with other projects in the area (a common gap).

4. **Participation and consultation adequacy** — whether the **public participation and any hearing** were genuine and properly documented, and whether the developer's expert-led consultation actually reached and heard affected people. A skipped, token, or poorly-run process is a real defect — Ugandan civil society has challenged exactly this in the oil ESIA's.

Get expert eyes on it where you safely can. A critique carries more weight when a qualified professional — a hydrologist, land-use expert, or valuer (for compensation) — has reviewed it. Universities and technical experts can sometimes help quietly; but be mindful that in Uganda, openly NGO-led opposition (especially on oil) can be dangerous, so prioritise lawful, low-profile channels. The goal is a written, technical impact critique that NEMA, the UHRC, and the court can rest on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human and economic terms, because that is what moves authorities and grounds a compensation claim. Document:

- **Health** — the specific risks (water contamination, pollution, dust) to nearby residents, drawing on recognised standards.
- **Livelihoods and compensation** — the effect on farming (coffee and food crops are central to household income and school fees), fishing, and other livelihoods, and — critically — whether the **compensation and resettlement** offered are **prompt, fair, and adequate** and include **replacement land** where the law requires. This is often the heart of the matter.
- **Community, land, and culture** — the loss of gardens, homes, graves, water, and a settled way of life, and the strain on the community.

Package this layer twice: a careful, factual version for participation, the UHRC, and any court, and a simple version to explain the stakes to neighbours (in the local language).

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record (land, crops, water first) before ground is broken; secure titles/occupancy evidence and per-household inventories.
- **Phase 2: Impact (Months 2-3)** — dissect the ESIA and the participation record; get technical review where you safely can.
- **Phase 3: Health/Economic/Compensation (Months 3-4)** — quantify the human, economic, and compensation stakes and package them.

Common Documentation Pitfalls (What Fails)

- **Missing the participation/hearing window or the court time limit** — act on time with your best evidence.
- **Neglecting the land/compensation angle** — for most Ugandan conflicts this is the winning issue; document holdings, occupancy, and compensation precisely.
- **Ignoring the participation record** — a defective process is a real hook; document every flaw.
- **Only environmental data** — authorities respond to land, livelihood, and compensation arguments too. Breadth wins.
- **Ignoring the ESIA's own admissions** — the ESIA is a source of concessions. Quote it back, with page numbers.
- **Careless security** — protect sensitive material and, above all, people.

Documentation Budget Breakdown (UGX)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering (land/water)	0–1m	2m–15m
Expert technical/valuation report	0 (quiet pro bono)	4m–30m
Independent sampling	500k–3m	3m–20m
Legal consultation	0 (where available)	1m–15m
Printing/local outreach	200k–1.5m	1.5m–8m

Most of this can be done for very little using the ESIA and public data, though travel in the oil region and remote areas adds cost. Spend where a report materially strengthens a claim — usually **land/compensation valuation, water, or the occupancy record**. One solid, factual report on the decisive issue is worth more than five general ones — and it must be

lawful and low-profile.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what matters already exists in public or obtainable records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at NEMA and the sector regulator. In Uganda the official documents for a project — the project brief or ESIA Statement, the scoping report, and the certificate of approval — are held by **NEMA** (which maintains an ESIA database), and the underlying licence records by the sector regulator (for oil, the **PAU**). Check these; much of the ESIA is public.

The ESIA and the participation record. Get the developer's ESIA Statement as it is publicised — it is where the developer admits harm. The **participation and any public-hearing record** is what you scrutinise for defects.

Land and compensation documents. The **land-acquisition and valuation records**, the **resettlement action plan**, compensation schedules, and your own **titles, customary certificates, or occupancy evidence** — the crux of most conflicts. These are held by the developer, the district land office, the Area Land Committee, and the Chief Government Valuer.

Baseline data. Water and environmental data from NEMA and the relevant ministries; wetland and forest data; and academic and NGO studies (several document the oil-region impacts).

Ownership and interests. Company ownership from the **Uganda Registration Services Bureau (URSB)**; oil and sector licences from the sector regulators; and public notices.

How to obtain a document. Uganda's **Access to Information Act, 2005** gives a right to information held by the state (with exemptions), and the ESIA Regulations require certain disclosure. Use the wording in Section 8E — kept simple and lawful.

The UHRC. The **Uganda Human Rights Commission** can investigate and, in doing so, obtain information and produce findings and remedies that support your case — a relatively accessible route.

Careful, lawful help. Some lawyers, legal-aid organisations, and land- and oil-focused civil-society groups (such as AFIEGO and others) advise on land and administrative matters; approach them discreetly. Be aware that **NGOs and defenders working on oil face real constraint and danger** in Uganda — arrests and NGO suspensions are documented — so prioritise lawful, local channels and professional legal advice over anything that looks like organised anti-oil campaigning.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to NEMA and the sector regulator, and the local-ally entries point you to lawful sources of help. Pull that thread first, then follow it into NEMA, the land records, and the requests above — always lawfully and carefully.

STEP 3: BUILDING LOCAL SUPPORT

Critical Insight About Organising (Lawfully)

In Uganda, a united community that works **lawfully and through local structures** carries real weight — but organising that can be framed as anti-government or anti-oil opposition carries genuine danger, as the arrests of oil-project defenders show. So the goal here is different from an open democracy: build broad, calm, law-abiding support around **concrete, lawful concerns** (land, compensation, crops, water), work through **local government, community structures, and clan and cultural leaders**, and avoid anything — confrontation, unauthorised gatherings, or campaigning that reads as anti-government — that invites a crackdown.

Three principles carry special weight here: **lawfulness and calm** (frame everything as protecting residents' lawful land and compensation rights and ensuring the project follows the law, not as opposing development or the state); **unity around concrete interests** (land, crops, water, and compensation unite people and are legitimate matters to raise); and **safety first** (protect leaders, keep everything lawful and documented, and get legal advice — the risks in oil and land conflicts are real and documented, and no project is worth a person's liberty).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: Start with the most affected, and local leaders. Reach the households whose land, crops, water, or homes are most directly at stake, and engage the **local council (LC) leaders, clan and cultural leaders, and respected elders** early. Listen first: concrete concerns (compensation, lost gardens, a threatened wetland) motivate and are lawful to raise.

Step 1b: Group by concrete concern. Let people come together around specific, lawful issues — land and compensation, crops, water, resettlement. These are legitimate matters the authorities are used to hearing.

Step 1c: Work through permitted structures. Rather than forming an outside campaign group (which, on oil, can be dangerous), work through **existing, permitted structures**: the **local councils**, community and farmer associations, clan and cultural institutions, and faith leaders. Choose a few respected, level-headed residents to represent the community lawfully. Where possible, get **legal advice** early on the land, compensation, and complaint routes.

PHASE 2: PUBLIC ENGAGEMENT (Months 2-3)

Step 2a: Community meeting (lawful). Hold a meeting — ideally through the local council or a community association — to inform residents, agree the concrete concerns, and choose representatives; bring the ESIA's admissions, the compensation terms, and the participation deadline. Keep it about lawful local interests.

Step 2b: Clear materials. Simple, factual, sourced materials in the **local language**; lead with the land, crops, water, and compensation stakes. Explain how residents can take part in the **public participation and any hearing**. Avoid anything that reads as anti-government.

Step 2c: Full participation in the hearing. Turn people out for the **public participation and any public hearing** and get concerns recorded, and **document the process** — because a defective participation is a real, lawful ground. Many residents' recorded concerns carry weight.

Step 2d: Raise it through permitted channels. Ask the local council and district leaders, and your area MP, to relay the community's lawful concerns.

PHASE 3: BROADENING SUPPORT (Months 3-6)

Step 3a: Careful outreach. Bring in lawful, credible support — sympathetic technical experts and valuers (quietly), lawyers or legal-aid and land-rights organisations, and neighbouring communities facing the same project. Each adds credibility and capacity. Be very cautious with anything that could be portrayed as outside, foreign-directed, or anti-oil campaigning.

Step 3b: Clear roles. Agree who represents the community, who handles the UHRC or court matter, who keeps the documents, and who liaises with the authorities and any lawyer — and keep it calm and lawful. Clarity prevents both confusion and exposure.

Step 3c: Coordinated lawful work. Joint participation, a shared land/compensation or UHRC claim, shared documents and legal advice, and a coordinated, respectful approach to NEMA, the district, and the sector regulator — especially where several communities are affected by one project (as along the pipeline corridor).

PHASE 4: SUSTAINED, LAWFUL PRESSURE (Months 6-12)

Step 4a: Use the lawful channels. Pursue the **UHRC** route, petitions to the district and national authorities, and — where a decision or acquisition is unlawful — the **courts** and, for cross-border projects, the regional court, the formal, lawful ways to press for review and correction.

Step 4b: Careful communication. Where possible, work with **permitted media** to inform the public factually (Section 10). Keep it factual and non-political.

Step 4c: Prevent failure points — and protect people. Efforts fail when they miss the participation window or the court time limit, rely on emotion over documented fact, or — most seriously — stray into confrontation that draws arrest and endangers people. Diarise every deadline, build the factual file, keep everything lawful and calm, work through local structures, and protect leaders above all.

Worked example: a community that works through lawful channels

A community faces an oil facility that will take gardens and homes and threaten a wetland. Anger is high; some talk of protest. What is both safest and most effective happens differently. First, the community works **through its local councils and clan leaders**, raising concrete, lawful concerns — **prompt, fair, adequate compensation, replacement land**, safe **wetland** treatment, and proper **consultation** — rather than opposing the project as such. Second, it **documents each household's land, crops, and occupancy** and insists compensation meet the constitutional standard — the strongest, safest ground Uganda offers. Third, it turns people out for the **public participation and any hearing** and records its flaws. Fourth, it gets **legal advice** and a **valuer**, and prepares a **UHRC complaint** and, if the acquisition or certificate is unlawful, a **court** claim. No confrontation, nothing anti-government — but real, lawful pressure that can force consultation, improve compensation, tighten the project, and, where the decision is unlawful, have a court examine it. The lesson generalises: **in Uganda, working through local structures on concrete land and compensation rights, documenting the participation, and using the UHRC and the courts is what achieves results while keeping people safe.**

Support-Building Budget: Year-Long Effort (UGX)

Very low. A lawful, community-based effort operates on **little more than the cost of meetings, materials, travel, and copying** — a few hundred thousand to a few million shillings, mostly volunteer. The main potential costs are **legal advice and a valuation** for a land or compensation case. Communities typically fund this through **modest local contributions**. Keep transparent, collective accounts, and — crucially — avoid outside funding arrangements that could be portrayed as foreign-directed anti-oil campaigning, which in Uganda carries real risk.

STEP 4: LEGAL CHALLENGES

Uganda gives communities a real, if narrow, set of lawful tools — public participation, the ESIA process, land and compensation rights, the courts, and the UHRC — and choosing the right one, and using it lawfully, is essential. Three tracks — participation and land, oversight (UHRC), and the courts. Throughout, get legal advice where you can, and keep everything within the law.

TRACK 1: PARTICIPATION AND LAND RIGHTS (the front door)

- **Public participation and any hearing.** Take part — and get objections on the record — in the **public participation** during the ESIA study and review, and in any **public hearing** NEMA holds. It can shape the ESIA and the conditions, and — because it is a legal requirement — a **skipped or token process is a genuine defect** you can later raise. Document the process meticulously.
- **Land acquisition and compensation (the powerful lever).** Acquisition must be lawful and requires **prompt, fair, and adequate compensation** (Constitution Art. 26), and must respect the rights of owners and **lawful/bona fide occupants** under the Land Act. Insist, in writing, that valuation and compensation meet the standard and that replacement land be offered where required — and where they are not, that is a real, court-recognised ground, and often your strongest lever. Contest an inadequate valuation before it is finalised.

TRACK 2: OVERSIGHT — THE UGANDA HUMAN RIGHTS COMMISSION (the accessible watchdog)

- **A complaint to the UHRC.** The **Uganda Human Rights Commission** is a constitutional body with **tribunal powers**: it investigates human-rights violations — including breaches of property and land rights, and mistreatment — and can **award remedies**. A complaint can produce findings and orders that generate real leverage and support a court case. It is relatively accessible and low-cost.

TRACK 3: THE COURTS (the decisive route)

- **Judicial review in the High Court.** Challenge the **lawfulness of the ESIA certificate** or a decision — for a defective process, a failure to hold or properly run a hearing, an unlawful acquisition, or an unreasonable decision — and ask the High Court to **quash** it and order it be retaken. Seek it **promptly** (strict time limits). Ugandan civil society has taken oil ESIA to the High Court on exactly these grounds; be realistic that, on oil, cases are hard and run slowly.
- **Constitutional petition and rights enforcement.** Where a constitutional right (to property and prompt/fair/adequate compensation, to a clean environment) is breached, a petition is possible.
- **Land claims and the land tribunals.** Compensation and occupancy disputes can go to the courts (and, for some matters, land tribunals) — the route for a compensation or eviction fight.

- **The East African Court of Justice.** For cross-border projects (like EACOP), coalitions have brought regional cases — a slower, additional route.
- **Injunctions.** Ask a court to **restrain** unlawful acquisition or works pending the case, to prevent irreversible harm — though courts have sometimes been reluctant in the oil context.

The three challenge types

TYPE 1: PARTICIPATION + LAND RIGHTS (the front door)

Engage the participation and any hearing, and insist on lawful acquisition and prompt/fair/adequate compensation — the source of your best and safest grounds.

TYPE 2: THE UHRC (the accessible watchdog)

A relatively accessible complaint to a body with tribunal powers that can find a violation and award a remedy.

TYPE 3: THE COURTS (the decisive route)

Judicial review, land and constitutional claims, and (for cross-border projects) the regional court — the routes that can examine an unlawful certificate or acquisition, with injunctions.

Legal Strategy Decision Tree

1. **Is participation / a hearing happening?** → Take part and **document every flaw** now — it is a lawful ground.
2. **Is land/compensation the issue?** → Insist on **lawful acquisition and prompt/fair/adequate compensation**, contest the valuation, and prepare a claim — often the strongest lever.
3. **Is there a rights violation?** → File a **UHRC** complaint (it can award a remedy).
4. **Has an unlawful certificate/acquisition issued?** → Seek **judicial review** in the High Court **promptly**, with an **injunction** (and consider the regional court for cross-border projects).

Success Factors

The right ground (an unlawful acquisition or inadequate compensation; a defective participation/ESIA; an unlawful decision); a careful, documented file (especially the land, occupancy, and participation record); standing; timely action (the court time limits); and legal advice. Missing any one weakens the effort — and, throughout, keeping everything lawful and safe.

What to Avoid

Missing the participation window or the court time limit; accepting an inadequate valuation without contesting it; failing to document the land and participation flaws; relying on emotion rather than a documented defect; and — most importantly — anything that can be treated as anti-government or anti-oil opposition, which carries real risk of arrest and rarely helps the project fight.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific, lawful ground. Here is how the records you gathered map onto the arguments that most often work in Uganda — so you raise the right fact through the right channel.

An unlawful acquisition or inadequate/late compensation → land claim / UHRC / court (the strongest ground).

Feed it with: your titles or occupancy evidence, the per-household inventory, the valuation and compensation schedule, and the specific ways they fall short of prompt/fair/adequate.

A skipped or defective public participation / hearing → ESIA defect / judicial review. Feed it with: your documented record of who was (not) heard and how the process was run.

A weak or incomplete ESIA → sent back / refusal ground. Feed it with: the ESIA's gaps (land, water, wetland, compensation) and any failure to consult.

Wetland, water, or protected-area harm → conditions / court ground. Feed it with: baseline and dated evidence of

the threat, expert-assessed.

A rights violation → UHRC / court. Feed it with: the specific breach of property, land, or personal rights, documented from the record.

Ignored cumulative impacts → ESIA ground. Feed it with: the other projects in the area and the ESIA's silence on their combined effect.

The pattern: match one clean, documented fact to one lawful ground, **lead with the land and compensation claim** (Uganda's strongest, safest lever) and the **participation and ESIA** grounds, raise them through **participation, the UHRC, and the land process**, and reserve **the courts** for a clean unlawful decision, with an injunction. A lawyer or land-rights organisation can tell you which ground is live — approach them discreetly.

STEP 5: MEDIA & COMMUNICATION

In Uganda, media is a double-edged tool: **permitted, factual coverage** (of land, compensation, or pollution) can move authorities to act, but anything that reads as anti-government or anti-oil campaigning carries real risk — journalists and activists covering oil have faced pressure and arrest — and the media itself operates under constraint. So the goal is to inform lawfully and factually — not to campaign against the state.

How This Works

Ugandan media do sometimes report **land disputes, compensation grievances, and pollution** — these are treated as livelihood and administrative issues. A factual, well-documented story about gardens lost or unfair compensation, offered to a **permitted outlet**, can prompt authorities to respond. The safest coverage frames the issue as protecting residents' lawful rights and ensuring the project follows the law.

What Makes a Safe, Effective Story

Local stakes + a concrete, lawful concern (land, compensation, water) + the project's own documents + a human face = coverage that helps. Keep it factual, non-political, and sourced. Never frame it as opposition to the government, or to the oil sector as such.

Which Outlets

Work with **permitted Ugandan outlets** and their environment or society desks, and community and local-language radio (which reaches affected communities directly). **Be very cautious with foreign or exile outlets and anti-oil campaigning**, and avoid framing that could be portrayed as anti-state — association with these can turn a livelihood issue into a security matter and endanger people.

Building Trust Carefully

Give reporters accurate, sourced material and be a reliable, factual contact. One trusted relationship with a mainstream journalist who covers land or environment can help. Offer access to the site and to affected residents — with their consent and safety in mind.

Why careful communication matters

Even quiet, factual coverage can reach an official who orders a review, a lawyer, or the UHRC — and it creates a lawful public record. But in Uganda, the calculus is different: the wrong kind of publicity can endanger people. So communicate to inform lawfully, keep it factual and non-political, and always weigh safety first.

What to Avoid

Anything that frames the issue as political or anti-oil opposition; contact with outlets the state deems hostile; foreign-funded or foreign-directed campaigning; and publishing accusations you cannot prove — all of which carry real risk in Uganda.

LETTERS & SUBMISSIONS

Ready-to-adapt templates. Keep them factual, dated, sourced, and — importantly — **lawful and non-political**. Submit important ones through the authority's official registry and keep dated proof of anything you file — Ugandan deadlines (the court time limits) are strict. Have a lawyer review anything heading toward the UHRC or court, and never include accusations you cannot prove.

8A. Note to a permitted local journalist (factual)

Subject: [District]: residents' concerns about [project] — documents attached

Dear [name],

A [project type] is proposed at [location]. Its own ESIA admits [specific admitted impact, quoted, with page number], including loss of [gardens/homes] and impacts on [the wetland/river] our community depends on, and questions remain about [compensation / replacement land]. Residents wish to ensure the project follows the law and protects our lawful land and compensation rights.

I can share the documents and connect you with affected residents. Might you look into it?

[Name] · [village/parish] · [phone]

8B. Letter to a decision-maker (NEMA / district / valuer)

Subject: Concerns regarding [project] — [reference number]

Dear [the Executive Director, NEMA / the Chief Administrative Officer / the Chief Government Valuer]:

We, residents of [village/parish] affected by [project] at [location], respectfully raise the following lawful concerns and request that they be addressed before any certificate is issued or acquisition finalised:

1. [Concern 1 — e.g. the compensation offered is not prompt, fair, and adequate, and no replacement land is offered as required.]
2. [Concern 2 — e.g. the rights of lawful/bona fide occupants have not been respected.]
3. [Concern 3 — e.g. the ESIA underestimates impacts on our wetland and gardens.]

We wish only for the project to comply fully with the law and for our lawful rights to be protected. We request a written response and are ready to provide our evidence.

[Signatories, village/parish, contact]

8C. Submission in public participation / at the hearing

Submission on the ESIA for [project], NEMA reference [number]

The affected residents of [village/parish] submit the following in the public participation / at the public hearing: 1.

Land and compensation. [Our land is [customary/mailo]; the acquisition and compensation must be lawful, and prompt, fair, and adequate, with replacement land — this has not been properly done.] 2. **Water and wetland.**

[Impacts on our wetland, water, and gardens are underestimated.] 3. **Participation.** [We note that [this is the first real notice / affected residents were not properly consulted]; we ask that participation be carried out fully as the law requires.] 4. **Cumulative impact.** [This project, with others nearby, should be assessed together.]

We ask that these concerns be reflected, and that the certificate be refused or strictly conditioned.

[Date, village/parish, contact; attach evidence]

8D. Request for legal advice (to a lawyer / legal-aid organisation)

Subject: Request for advice on [land/compensation / ESIA] regarding [project]

Dear [lawyer / legal-aid organisation],

Residents of [village/parish] are affected by [project], which involves [land acquisition and compensation / an ESIA] we believe may not comply with the law. We would value your advice on our lawful options — the land and compensation route, the UHRC, judicial review, the deadlines, and whether we have a case — and, if appropriate, your

representation. We can provide our titles/occupancy evidence, the per-household inventory, and the project documents.

[Name, village/parish, contact]

8E. Access-to-information request

Subject: Request for information under the Access to Information Act, 2005

Dear [NEMA / the district / the valuer]:

Under the **Access to Information Act, 2005**, we request: 1. the ESIA Statement and certificate file for [project]; 2. the public-participation and any public-hearing record; 3. the land-acquisition, valuation, compensation, and resettlement documents affecting [village/parish].

Please provide these within the statutory period. [Name/village, date, contact]

8F. Complaint to the Uganda Human Rights Commission (UHRC)

Subject: Complaint regarding violation of land/property rights — [project]

To the Uganda Human Rights Commission:

We, residents of [village/parish], complain regarding [project] at [location]. [Our land/property rights were violated because the acquisition was unlawful / compensation is not prompt, fair, and adequate / lawful occupants were disregarded / we were mistreated.] We attach [evidence]. We request an investigation and appropriate remedy, and ask to be kept informed.

[Village/parish, date, contact]

8G. Factual public information note (for permitted use)

[Village/parish] residents' information note — [date]

Residents of [village/parish] have raised lawful concerns about [project] at [location], including [top two concerns — e.g. compensation and wetland impacts]. The project's own ESIA admits [quoted impact]. Residents ask that the project comply fully with the law and protect their lawful land rights, and have submitted their concerns to [authority]. Contact: [name, phone].

8H. Instruction to counsel (judicial review + injunction)

Subject: Proposed judicial review regarding [project]

Dear [counsel],

Residents of [village/parish] wish to seek **judicial review** in the High Court of the [ESIA certificate / decision / acquisition] for [project], on the grounds that [the acquisition/compensation was unlawful / the participation was defective / the decision was unlawful], and to seek an **injunction** to restrain works or acquisition pending judgment. We can provide titles/occupancy evidence, the valuation and compensation documents, the participation record, and our evidence. Please advise on the **time limit** (we must move promptly), standing, the injunction, the UHRC and regional-court options, and strategy.

[Date, signature]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual reference and dates, keep everything **factual, lawful, and non-political**, and — for a UHRC or court step — have a lawyer review it. Deadlines are strict (the participation window; the **court time limits**). Keep dated proof of everything you file. Above all, **never publish accusations you cannot prove, and avoid anything that could be treated as anti-government or anti-oil** — in Uganda, that can endanger people. When in doubt, get legal advice and choose the safer course.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can sustain a long effort. If you have limited time, you can still act lawfully and usefully — while keeping yourself safe. In rough order of impact for the effort:

1. **Document your land, crops, and occupancy now.** A precise, dated, per-household record of what is on the land — the gardens, coffee, trees, structures — and your **title or occupancy evidence** is your single highest-leverage move, because compensation turns on proving what was there, and this is the strongest, safest ground Uganda offers.
2. **Contest an inadequate valuation before it is finalised.** Insist, in writing, that compensation be **prompt, fair, and adequate** and include replacement land where required. This is the most winnable lawful lever.
3. **Get the ESIA and take part in the hearing, documenting it.** Obtain it from NEMA, attend, submit concerns in writing, and record any flaws — a defective participation is a lawful ground.
4. **Quote the ESIA's worst admission back to NEMA** (Section 8B). The project's own words carry weight.
5. **File a UHRC complaint** if land or property rights are breached. It can investigate and award a remedy.
6. **Get legal advice discreetly** on the court time limits and your strongest ground — and to keep you safe and lawful.
7. **Raise it through your local council and area MP** (Section 8B) — the lawful way to press for review.

If you do only the first three, you have secured the evidence compensation turns on, put your concerns on the record, and preserved the participation and land grounds — and left a trail others can build on. That is a real contribution. Throughout, keep everything lawful and non-political, and prioritise your safety above all.

WHEN THE SYSTEM IS TILTED — AND HOW TO STAY SAFE

This section is essential reading for Uganda. The system is not merely tilted toward development — it operates with a **restricted and tightening civic space**, especially around oil, and a documented record of **arresting environmental and land-rights defenders** and **suspending NGOs**. Being honest about this is how you choose tools that are both effective and safe.

What This Reality DOES (and DOESN'T DO)

The reality prioritises investment and state-led development — above all oil — issues the certificate through NEMA's Executive Director, and treats confrontation or anti-oil campaigning as a threat. It does **not** eliminate every lawful lever: the **Constitution and Land Act** give real, court-recognised rights of lawful acquisition and **prompt, fair, and adequate compensation**; the **ESIA** requires participation and possible hearings; the **UHRC** investigates rights violations and can award remedies; and the **courts** (and, for cross-border projects, the regional court) function for judicial review, even if the oil context is hard. The key is to use these **lawful, technical, within-system** levers — above all land and compensation rights — work through **local structures**, and avoid anything that can be framed as anti-government or anti-oil — while protecting people.

Reading Your Situation

- **A concrete, lawful grievance (land, compensation, a procedural defect).** These are legitimate matters to raise through participation, the land process, the UHRC, and the courts, and are where communities most often win improvements. This is the safe, productive zone.
- **A project the state strongly backs (oil, a strategic dam or road).** Expect the certificate to issue and limited room; concentrate on lawful improvements — compensation, replacement land, mitigation, proper consultation — and accept that delay and improvement may be the realistic wins.
- **The danger zone.** Anything resembling anti-oil or anti-government campaigning, unauthorised protest, foreign-directed organising, or public accusation against the state — this carries **real personal danger**, as the dozens of arrests around the oil projects show, and rarely helps the project fight. Stay out of it.

Documented Dynamics — Read This Honestly

The record is sobering. Around the **Tilenga, Kingfisher, and EACOP** projects, the government has carried out **dozens**

of arrests of environmental and land-rights defenders since 2021, harassed and intimidated activists (including a documented torture case), and **suspended NGOs**; and affected communities have faced **displacement with delayed, inadequate, or no replacement land**, with courts at times used to evict people before compensation. At the same time, **land rights and compensation are constitutionally protected**, the UHRC and courts function (civil society has taken oil ESIA to court), and regional and international attention provides some check. This is the essential context: the effective, safe path in Uganda is **lawful, technical, local, and channelled** — not confrontation, and not association with anything the state may deem hostile. No project fight is worth a person's liberty.

Assessment Framework — Determine Your Situation

Ask: Is this a concrete, lawful grievance (land, compensation, a procedural defect) I can raise safely? Is the land/compensation issue the crux (often the most winnable)? Was participation defective? Can I get legal advice? Is there any risk this could be framed as anti-oil or anti-government (if so, step back and get advice)? The answers tell you whether to proceed with the land, participation, UHRC, and court routes — and, above all, how to stay safe.

Direct Action: A Clear Caution (Descriptive, Not Prescriptive)

Unlike in open democracies, **protest and anti-oil campaigning carry serious risk** in Uganda, and this guide does **not** recommend them — the record around the oil projects includes dozens of arrests and worse. The lawful path here is to raise **concrete grievances through participation, the land process, the UHRC, and the courts**. Keep strictly within the law, avoid anything that reads as anti-government, and get legal advice before any collective action. Each person's safety is paramount.

Honest Assessment

Within these tight constraints, lawful effort still achieves real things — improved compensation, forced consultation, safer projects, delay, and court examination — and these are genuine wins, especially on land. But the constraints and dangers are real and documented, some fights cannot be won safely, and no outcome is worth endangering a person. Concentrate on the lawful, technical, local, land-and-compensation levers; work through local structures; get legal advice; and put safety first, always.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions, or decisions you disagree with, not provable corruption. Corruption exists in Uganda, but for a community the safest and most useful lens is **structural**: who benefits, and through which channel, so you can target the lawful lever. Handle any suspicion of corruption with great care: **public accusation is dangerous** in Uganda and can rebound on you.

NEMA and the certificate. The structural pressure point: NEMA's **Executive Director** issues the certificate, and the ESIA is written by the developer's own accredited expert who also leads consultation — a transparency weakness civil society has flagged in the oil ESIA. Signs: a certificate issued over clear objections, a rushed or waved-through ESIA, a poorly-run hearing. Lever: the ESIA rules, the participation record, the UHRC, and judicial review.

The land and compensation system. Land is the crux of most grievances — acquisition at low or delayed compensation, no replacement land, disregard of lawful occupants, and pressure to accept unfair offers. Signs: undervaluation, delay, people told they will lose in court if they refuse. Lever: the **land/compensation claim**, the valuation challenge, and the UHRC — the most winnable and legitimate route.

District and political officials. Capture here runs through patronage and the powerful interests behind strategic projects (especially oil). Signs: an official tied to the developer, pressure on local leaders, protection for the project. Lever: the UHRC, the **Inspectorate of Government (IGG)**, and the Auditor-General for genuine wrongdoing.

The companies and investors. Watch for licences or land quietly acquired before a project is public, opaque or well-connected ownership, and the power of major foreign investors (**TotalEnergies, CNOOC**) and the state company (**UNOC**). URSB and the sector registries surface ownership.

The courts and "strategic project" framing. The courts function for judicial review but, in the oil context, have at times been criticised as unfriendly to affected people, and "strategic/national" framings grant discretion. Treat the courts

as a genuine but not guaranteed route, and route genuine corruption to the control bodies.

How to act on it, safely. Document from records, never rumour, and keep it private. Route any genuine concern through the **lawful channels** — the **UHRC**, the **Inspectorate of Government** — and **through a lawyer** where possible. Do **not** make public accusations, contact hostile outlets, or frame the matter politically: in Uganda this is dangerous and can turn a land grievance into a security case against you. Keep to the provable, lawful, factual ground — usually the land, compensation, and procedural issues — and protect your people.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other over an effort that typically spans a year or more (and a court case can run much longer). Here is how they fit onto one timeline — built around Uganda's deadlines and, throughout, around lawfulness and safety.

Realistic 12-Month Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the careful, private one-page fact sheet — project, whether a full ESIA applies, that NEMA's ED decides, the land tenure and occupancy status, the compensation picture, the lawful lever to pursue, every deadline. - Work through **local councils, clan leaders, and community structures**. - Begin baseline documentation (Step 2, Layer 1), land, crops, and water first; secure titles/occupancy evidence and per-household inventories before ground is broken. - Obtain the **ESIA Statement** and the land/compensation documents. - Get **legal advice** on the land, compensation, and court routes, discreetly.

Months 2-3 (Engagement). - Take part in the **public participation and any hearing** and **document every flaw** (Step 4, Track 1). - **Contest the valuation** and insist on prompt/fair/adequate compensation and replacement land (Track 1). - File a **UHRC complaint** if land or property rights are breached (Track 2). - Hold a lawful community meeting and, where safe, engage permitted media (Steps 3 & 5). - Complete the ESIA critique and the compensation/valuation analysis (Step 2, Layers 2-3).

Months 3-6 (Broadening). - Broaden lawful support carefully; line up technical, valuation, and legal help; coordinate with other affected communities (Step 3, Phase 3). - Prepare the **land/compensation or judicial-review** case with counsel. - Sustain lawful, factual pressure through permitted channels.

Months 6-12 (Lawful pressure & decision). - Pursue the **UHRC** route and petitions to the district and national authorities (Step 3, Phase 4). - If the certificate or acquisition is unlawful, seek **judicial review** in the High Court **promptly**, with an **injunction** (Track 3) — and consider the regional court for cross-border projects. - Keep everything lawful, factual, and safe throughout.

Beyond 12 months. - A court case can run for years; an injunction, if granted, protects you meanwhile. - If the project proceeds, monitor compliance and pursue further lawful complaints and compensation claims for any breach. - Keep the community's records and lawful unity intact — and keep protecting people.

Warning Signs — Act Early

The ESIA participation or a land-acquisition/valuation exercise begins (act now); the ESIA Statement is published; a compensation schedule is issued; a "strategic project" designation is used; people are pressed to accept low offers or told they will lose in court. Early, lawful action — documenting your land and occupancy, contesting the valuation, and taking part in the hearing — is far stronger than reacting late, because the participation window and court time limits are short.

Key Principles (What Separates Effective Efforts from Failed Ones)

Effective efforts: identify the lawful lever (usually land and compensation, participation, and the ESIA); work through local structures and keep the community united and calm; document rigorously, land and crops first; use participation, land/compensation rights, the UHRC, and the courts; get legal advice; hit every deadline; and — above all — keep everything lawful and safe. Failed or dangerous efforts: miss the participation window or the court time limit; accept an inadequate valuation without contesting it; rely on emotion; or stray into confrontation that endangers people.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Uganda takes forms suited to its constraints, and it is worth naming them so you recognise a win when you get one: - an ESIA **sent back or improved**, or a certificate **refused, conditioned, or suspended**; - **land consultation taken seriously** and **compensation improved** to prompt, fair, and adequate, with replacement land — often the most achievable win; - the project's **conditions and mitigation tightened**; - a **UHRC finding and remedy** for a rights violation; - a **High Court** examination or order on an unlawful certificate or acquisition, or an **injunction**; - a project **quietly adjusted or relocated** after lawful, documented pressure; - and, throughout, a community that has acted lawfully and kept its people safe.

Ugandan communities have achieved or pursued these — through lawful, technical, local effort, not through confrontation.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone — and weigh **safety** at every one. If the land/compensation ground is strong, or a participation or ESIA defect is clear, the UHRC and court routes may be well worth it. If the time limits have passed, effort shifts to compensation claims, monitoring, further lawful complaints, and local channels. If continuing would require stepping into confrontation or unsafe territory, **stop** — no project is worth a person's liberty. Continuing lawfully is often right; escalating unsafely never is.

The Bottom Line

Uganda's system prioritises state-led development, above all oil; issues the ESIA certificate through NEMA's Executive Director; has documented compensation failures; and restricts civil society — and has arrested land and environmental defenders — so opposition here must be, above all, **lawful, technical, and safe**. But the system does provide real levers: the **Constitution and Land Act** give genuine, court-recognised rights of lawful acquisition and **prompt, fair, and adequate compensation**, respecting owners and lawful/bona fide occupants — often your strongest lever; the **ESIA** requires **public participation and possible hearings**; the **Uganda Human Rights Commission** investigates rights violations and can award remedies; and the **courts** (and, for cross-border projects, the East African Court of Justice) function for judicial review. Communities that work through local structures on concrete land and compensation rights, document to the land, crop, and participation standards, engage the hearing and use the UHRC and the courts with legal advice rather than confrontation, keep everything lawful and non-political, and put safety first have forced consultation, improved compensation, tightened projects, delayed and adjusted developments, and taken unlawful decisions to court — and can again. No single step wins; the combination does, within the law. Start today by documenting your land and occupancy, obtaining the ESIA, contesting any unfair valuation, getting legal advice, and identifying which lawful lever is open — and, throughout, keep your people safe.